

PERFORMANCE WORK STATEMENT (PWS)

Maintenance and Repair Service for Hamilton Jet Drive Systems 2026

Part 1

GENERAL INFORMATION

1. **GENERAL REQUIREMENTS:**

1.1 **Description of Services/Introduction:** This is a non-personal services contract to provide maintenance and repair services on Hamilton Jet brand waterjet propulsion systems. The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items to perform all services as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall meet the standards in this contract.

1.2 **Background:** Jacksonville District's survey vessel, "Florida II" utilizes two Hamilton Jet HM-422 Jets coupled to MTU diesel engines for its propulsion.

1.3 **Objectives:** The Contractor shall provide maintenance and repair services to the Hamilton Jet drive systems in accordance with the requirements of this PWS.

1.4 **Scope:** Services include performing preventative and corrective maintenance and repairs on Hamilton Jet drive systems. Services shall be performed by a service center and service technician authorized for repairs by Hamilton Jet, Inc.

1.5 **Period of Performance:** Five Years.

1.6.1 **Quality Control:** The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is how they assure that the work complies with the requirement of the contract. After acceptance of the quality control plan the contractor shall receive the Contracting Officer's acceptance in writing, of any proposed change to their QC program.

1.6.2 **Quality Assurance:** The government shall evaluate the contractor's performance under this contract in accordance with the Performance Requirement Summary (PRS). Additionally, the Government will use a Quality Assurance Surveillance Plan (QASP), in the inspection of the services. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7 **Recognized Holidays:** The Contractor may be required to work on holidays for completion of time critical repairs or in order to maintain an established repair schedule.

<u>Holiday</u>	<u>Date/Observed</u>
New Year's Day	January 1
Martin Luther King Jr. Day	Third Monday in January
Washington's Birthday (Presidents' Day)	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth National Independence Day	June 19

Independence Day	July 4
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Day	December 25

1.8 Hours of Operation: The contractor is responsible for conducting business between the hours of 0800 - 1700 (EST) Monday through Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. For other than firm fixed price contracts, the contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must always maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

1.9 Place of Performance: The work to be performed under this contract will be performed at the contractor's facility, at the vessel's homeport or in both locations concurrently, as needed.

1.10.2 Physical Security: The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use.

1.11 Post Award Conference/Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The Contracting Officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will inform the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.12 Contracting Officer Representative (COR): The (COR) will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially relating to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

1.13.1 Special Qualifications: The Contractor shall be authorized by Hamilton Jet Inc. to perform maintenance and repair services on the Hamilton Jet HM-422 Jet system. The technician shall have been trained at a Hamilton Jet, Inc. approved facility and shall furnish a copy of their current certification as proof of training.

1.13.2 Key Personnel: The following personnel are considered key personnel by the government: Contract manager, service manager(s). The contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the contractor when the manager is absent shall be designated in writing to the contracting officer. The contract manager or alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract. The contract manager or alternate shall be available between 0800 – 1700 (EST), Monday thru Friday except Federal holidays or when the government facility is closed for administrative reasons. Qualifications for all key personnel are listed below: The contract manager shall be authorized by Hamilton Jet Inc. to represent Hamilton Jet Inc. to the U.S Army Corps of Engineers for

all actions regarding this contract. The service manager shall be authorized by Hamilton Jet Inc. to represent their service branch to the U.S. Army Corps of Engineers regarding work referenced in this PWS including invoice and payment actions.

1.14 Contractor Travel: Routine service shall occur in Jacksonville, FL. However, emergency repairs may occur throughout the State of Florida depending on where the Florida II is temporarily stationed for duty regarding the hydrographic surveying of federal projects. The Contractor shall be required to report, equipped with servicing tools and replacement parts, to the on-site support location within 24 - 48 hours of notification by COR.

The contractor will be authorized travel expenses consistent with the substantive provisions of the Joint Travel Regulation (JTR) and the limitation of funds specified in this contract. All travel requires Government approval/authorization and notification to the COR. Travel costs shall be reimbursed by the Government but shall not exceed an annual amount of \$15,000. Any additional cost shall be the responsibility of the Contractor. The Government cannot predict when system failure will occur; subsequently, the Government cannot predict when on-site support will be requested. However, travel may be anticipated at any of the following Federal projects throughout the State of Florida. See Attachment A for a detailed list of the AOR.

The contractor shall submit copies of actual travel receipts for any airfare, lodging, etc. to the COR for approval for reimbursement. Actual mileage will be paid based on the current JTR POV mileage allowance from the Contractor's registered physical business address to the on-site support location.

1.17 Organizational Conflict of Interest: The contractor and subcontractor personnel performing work under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the Contracting Officer immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may effect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

PART 2

DEFINITIONS & ACRONYMS

2. **DEFINITIONS AND ACRONYMS:**

2.1. **DEFINITIONS:**

2.1.1. **CONTRACTOR.** A supplier or vendor having a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2. **CONTRACTING OFFICER.** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.3. **CONTRACTING OFFICER'S REPRESENTATIVE (COR).** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4. **DEFECTIVE SERVICE.** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5. **DELIVERABLE.** Anything that can be physically delivered but may include non-physical things such as meeting minutes.

2.1.6. **KEY PERSONNEL.** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7. **PHYSICAL SECURITY.** Actions that prevent the loss or damage of Government property.

2.1.8. **QUALITY ASSURANCE.** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9. **QUALITY ASSURANCE Surveillance Plan (QASP).** An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.10. **QUALITY CONTROL.** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11. **SUBCONTRACTOR.** One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.12. **WORK DAY.** The number of hours per day the Contractor provides services in accordance with the contract.

2.1.12. **WORK WEEK.** Is defined as Monday through Friday, unless specified otherwise.

2.2. ACRONYMS:

ACOR	Alternate Contracting Officer's Representative
AFARS	Army Federal Acquisition Regulation Supplement
AR	Army Regulation
CCE	Contracting Center of Excellence
CFR	Code of Federal Regulations
COR	Contracting Officer Representative
COTS	Commercial Off the Shelf
DA	Department of the Army
DD250	Department of Defense Form 250 (Receiving Report)
DD254	Department of Defense Contract Security Requirement List
DFARS	Defense Federal Acquisition Regulation Supplement
DMDC	Defense Manpower Data Center
DOD	Department of Defense
FAR	Federal Acquisition Regulation
HIPAA	Health Insurance Portability and Accountability Act of 1996
HJ	Hamilton Jet
KO	Contracting Officer
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. GOVERNMENT FURNISHED ITEMS AND SERVICES:

3.1. Services: Reserved.

3.2. Facilities: Reserved.

3.3. Utilities: Reserved.

3.4. Equipment: The government will provide the government owned survey vessel.

3.5. Materials: Reserved.

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

4. CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:

4.1 General: The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 Secret Facility Clearance: Reserved.

4.3. Materials: The Contractor shall furnish materials, supplies, and equipment necessary to meet the requirements under this PWS.

4.4. Equipment: The Contractor shall furnish equipment necessary to meet the requirements under this PWS.

PART 5

SPECIFIC TASKS

5. Specific Tasks:

5.1. Basic Services. The contractor shall provide services for diagnostic, routine maintenance, repair, tuning, modifications for optimal performance, upgrades (if applicable), and care of Hamilton Jet engines, systems, and parts.

5.2. Task: Perform diagnostic services within 24 - 48 hours of notification by COR.

5.2.1 Standard: Service shall be prompt and courteous. The technical support staff shall be knowledgeable and provide a written report of the results of the diagnostic. The report should include a description for each part requiring repair or replacement and shall indicate as to whether or not the part or components are covered under the manufacturer's warranty.

5.3: Task: Perform routine maintenance. Maintenance shall be performed by the Contractor in accordance with the Hamilton Jet, Inc. service and maintenance published reference material. Maintenance shall be performed in accordance with Hamilton Jet's official standards and practices as specified by Hamilton Jet's training curriculum. Routine maintenance will be scheduled at least two business days in advance. The contractor shall, at minimum, include the following services: haul, lay, dock, check oil, change oil, grease bearings, grease housings, check and maintain the power hydraulic systems and driveline, and repair/replace anodes and anti-fouling paint.

5.3.1 Standard: The contractor performed all the work under item 5.3 satisfactorily.

5.4. Task: Perform corrective maintenance. Corrective maintenance shall be performed in accordance with Hamilton Jet's official standards and practices as specified by Hamilton Jet's training curriculum. Work shall, at minimum, include the following services: check/repair ducts, nozzles, tailpipe, torque fasteners, impeller, coupling nuts, impeller, water bearing, bearing housing, waterseal, oil seal, thrust bearing, endfloat, impeller race, hydraulic pump, hydraulic cylinder, and fasteners.

5.4.1 Standard: The contractor performed all work under 5.4 satisfactorily.

5.5. Task: The contractor shall perform a modification to upgrade parts as they become available for existing systems owned by the Government upon request by the COR.

5.5.1 Standard: The Contractor shall be knowledgeable and provide a written report of the suggested improvements.

5.5 CONTRACTOR MANAGEMENT REPORTING (CMR): Reserved.

PART 6

APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures. EM 385-1-1 <http://140.194.76.129/publications/eng-manuals/>

PART 7

CONTRACTOR MANPOWER REPORTING

Reserved

PART 8

EXHIBITS AND ATTACHMENTS

8. Exhibits and AttachmentS List:

- 8.1. Exhibit A – Performance Requirements Summary
- 8.2. Exhibit B – Deliverables Schedule
- 8.3. Exhibit C – U.S. Army Corps of Engineers, Jacksonville District AOR
- 8.7. Attachment 1 – Quality Assurance Surveillance Plan (QASP).

EXHIBIT A

Performance Requirements Summary

Performance Objective	Standard	Performance Threshold	Method of Surveillance
PRS # 1. The contractor shall provide diagnostic work in accordance with paragraph 5.2.	The contractor provided diagnostic work correctly and within the agreed upon time, restoring the vessel's operation.	Zero from standard	100% by COR
PRS # 2 The contractor shall provide routine maintenance in accordance with paragraph 5.3.	The contractor provided diagnostic work correctly and within the agreed upon time, restoring the vessel's operation.	Zero from standard	100% by COR
PRS # 3 The contractor shall provide corrective maintenance in accordance with paragraph 5.4	The contractor provided diagnostic work correctly and within the agreed upon time, restoring the vessel's operation.	Zero from standard	100% by COR

EXHIBIT B

Deliverable Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
The contractor shall furnish a summary report that states a detailed description of work and associated costs	Upon request by COR	One (1)	Electronic (pdf or jpeg)	Appointed COR.
The contractor shall furnish a proposal for work for an upgrade or modification	Upon request by COR	One (1)	Electronic (pdf or jpeg)	Appointed COR.
The contractor shall furnish an invoice for services rendered and itemized by parts and labor.	Within 24 hours of completion of the maintenance service.	One (1)	Electronic (pdf or jpeg)	Appointed COR.
The contractor shall furnish a Release of Claims upon receipt of payment from USACE.	Within 24 hours of receipt of payment for services rendered.	One (1)	Electronic (pdf or jpeg) Provided by the COR.	Appointed COR.

EXHIBIT C

USACE Jacksonville District AOR (Area of Responsibility)

Alafia Rivera, Anclote River, Atlantic Intercoastal Waterway, Intercoastal Waterway, Canaveral Harbor, Cedar Island / Keaton Beach, Cedar Keys Harbor, Charlotte Harbor, Boca Grande Pass, Clearwater Pass, Courteney Channel, Crystal Rivera, Daytona Beach, Everglades Harbor, Fernandina Harbor, Fort Myers Beach, Ft. Pierce Harbor, Gulf Intercoastal Waterway, Hernando Beach, Hillsborough River, Homosassa River, Horseshoe Cove, Jacksonville Harbor, Johns Pass, Key West Harbor, Key West Northwest Channel, Kings Bay Entrance Channel, Kings Bay Inner Channel, Lake Crescent, Dunns Creek, Longboat Pass, Manatee Harbor, Manatee River, Mayport Harbor, Melbourne Harbor, Miami Harbor, Miami River, Mill Cove, Naples to Big Marco Pass, Naples to Gordon Pass, New Pass, New River, Okeechobee Waterway, Palm Beach Harbor, Pass-a-grille Pass, Pithlachascotee River, Ponce de Leon Inlet, Port Everglades Harbor, St. Augustine Inlet, St. Johns River, St. Lucie Inlet, St. Petersburg Harbor, Steinhatchee River, Suwannee River, Tampa Harbor Upper Hillsborough Bay, Seddon Channel, Tampa Harbor, USMC Blount Island, Venice Inlet, Withlacoochee, and all beaches in the State of Florida.